

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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RONALD D. ELLIOT,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and P.O. MARC HANNON,

Defendants.
-----X

Plaintiff RONALD D. ELLIOT, by his attorneys, BRODY AND BRANCH LLP, as and
for his verified complaint, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees for false arrest, false imprisonment, assault, battery, malicious prosecution and deprivation of his civil rights pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

PARTIES

2. Plaintiff, Ronald D. Elliot, is a 44-year-old male veteran of the Gulf War and was at all relevant times a resident of the City of New York, County of New York.

3. Defendant, City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant, the City of New York, maintains defendant New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York Criminal

Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

5. Defendant, Police Officer Marc Hannon (Shield No. 8158) of the 26th Precinct, is a duly sworn police officer of the New York City Police Department, and was acting within the scope of employment and under the supervision of said department and according to his official duties. He is sued in his individual capacity, and as an employee of the City of New York.

6. At all times here mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the City and State of New York.

7. Each and all of the acts of defendant, Police Officer Marc Hannon, alleged herein were done by said defendant while acting within the scope of his employment by defendant, the City of New York.

8. Each and all of the acts of defendant, Police Officer Marc Hannon, alleged herein were done by said defendant while acting in furtherance of his employment by defendant, the City of New York.

9. Prior to the commencement of this action, a notice of claim in writing was served on behalf of plaintiff upon the City of New York in accordance with Section 50-e of the General Municipal Law.

10. Although more than thirty days have elapsed since service of such notice of claim, the City of New York neglected and has refused to pay said claim or adjust same.

11. A hearing pursuant to General Municipal Law 50-h was held on July 18, 2014.

12. This action is commenced within one year and ninety days from January 7, 2014, the date the plaintiff was arrested.

FACTS

13. On January 7, 2014, plaintiff was working a cinematographer, filming a full-length feature film in Brooklyn, New York. A production team consisting of approximately 30 people were present during the early-morning shoot and the temperature hovered around 4-degrees Fahrenheit.

14. After shooting was finished, due to the late hour and frigid weather, plaintiff was driving the film's female lead actor, Ms. Ciera Payton, back to the apartment where she was staying in Manhattan.

15. At about 2:00 a.m., plaintiff was pulled over by defendant Police Officer Marc Hannon (Shield No. 8158) near the corner of 126th Street and Broadway in Manhattan.

16. Plaintiff presented his license and registration and asked Officer Hannon why he had been stopped. Officer Hannon stated that one of plaintiff's tail lights was out. Plaintiff explained to Officer Hannon that his tail light was not out and asked again why he was being stopped. Officer Hannon gave no response and returned to his patrol vehicle.

17. After 15 to 20 minutes, Officer Hannon returned to plaintiff's vehicle and handcuffed, searched, and arrested plaintiff for driving with a suspended license.

18. Based on Officer Hannon's arrest, without probable cause, plaintiff was placed in a holding cell at the 26th Precinct and charged with unlicensed driving and aggravated unlicensed operation of a motor vehicle in the third degree. Plaintiff was never issued a ticket for a broken tail light.

19. Plaintiff incurred \$3,500 on attorney's fees to defend his case in the New York County Criminal Court under docket number 2014NY008760 and, on May 15, 2014, all charges against him were dismissed with prejudice. The case was marked "sealed."

AS AND FOR A FIRST CAUSE OF ACTION
FALSE ARREST UNDER 42 U.S.C. § 1983/NEW YORK STATE LAW

20. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "19" with the same force and effect as if fully set forth herein.

21. As a result of defendants' aforementioned conduct, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated by the defendants without any probable cause, privilege, or consent.

22. As a result of the foregoing, the plaintiff was embarrassed, humiliated, degraded, and subjected to handcuffing and other physical restraints, without probable cause. Additionally, plaintiff suffered significant emotional damages on account of his false arrest in front of his film's lead female actor and head producer, news of which trickled down throughout the entire film community.

AS AND FOR A SECOND CAUSE OF ACTION
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983/NEW YORK STATE LAW

23. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "22" with the same force and effect as if fully set forth herein.

24. Plaintiff was falsely held and imprisoned and detained as a result of the false arrest.

25. The detention of the plaintiff by defendants was objectively unreasonable and in violation of plaintiff's constitutional rights.

26. As a result of the foregoing, plaintiff sustained loss of liberty and freedom of movement, lost earnings, damage to reputation, and emotional psychological injuries consisting of embarrassment, humiliation, degradation, and depression.

AS AND FOR A THIRD CAUSE OF ACTION
ASSAULT UNDER 42 U.S.C. § 1983/NEW YORK STATE LAW

27. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "26" with the same force and effect as if fully set forth herein.

28. Defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

29. As a result of defendants' conduct, plaintiff has suffered mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

AS AND FOR A FOURTH CAUSE OF ACTION
BATTERY UNDER 42 U.S.C. § 1983/NEW YORK STATE LAW

30. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "29" with the same force and effect as if fully set forth herein.

31. Defendant, Police Officer Marc Hannon, touched plaintiff in a harmful and offensive manner.

32. Defendant, Police Officer Marc Hannon, did so without privilege of consent of the plaintiff.

33. As a result of defendants' conduct, plaintiff has suffered mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

AS AND FOR A FIFTH CAUSE OF ACTION
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983/NEW YORK STATE LAW

34. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "33" with the same force and effect as if fully set forth herein.

35. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

36. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

37. Defendants acted with malice in initiating criminal proceedings against plaintiff.

38. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

39. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

40. Defendants acted with malice in continuing criminal proceedings against plaintiff.

41. Notwithstanding the conduct of defendants, the criminal proceedings were terminated in plaintiff's favor when all criminal charges were dismissed against him with prejudice.

42. As a result of the foregoing, plaintiff sustained loss of liberty and freedom of movement, lost earnings, damage to reputation, and emotional and psychological injuries consisting of embarrassment, humiliation, degradation, and depression. Plaintiff also incurred attorney's fees.

**AS AND FOR A SIXTH CAUSE OF ACTION
DEPRIVATION OF CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

43. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "42" with the same force and effect as if fully set forth herein.

44. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

45. All of the aforementioned acts deprived plaintiff Ronald D. Elliot of the rights, privileges, and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

46. The acts complained of were carried out by defendant Police Officer Marc Hannon in his capacity as a police officer, with all the actual and/or apparent authority attendant thereto.

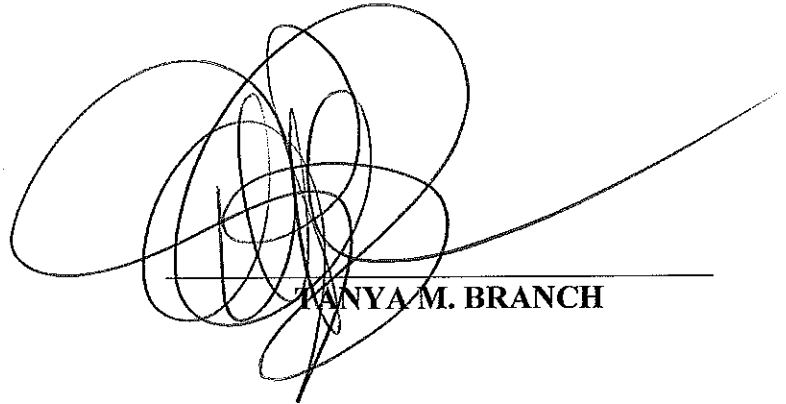
47. The acts complained of were carried out by defendant Police Officer Marc Hannon in his capacity as a police officer, pursuant to the customs, usages, practices, procedures and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

48. Defendants collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

49. As a result, the plaintiff seeks compensatory damages, punitive damages, and reasonable attorney's fees, costs, and disbursements of this action.

WHEREFORE, plaintiff demands judgment awarding damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements of this action, and such other and further relief as this Court deems just and proper.

Dated: New York, New York
January 5, 2015



TANYA M. BRANCH